

Stanton v. Grigley (Estate of Zdanowicz)

177 Conn. 558 (1979)

PROCEDURAL HISTORY:

Henry L. Stanton, the son of the decedent Julius J. Zdanowicz, appealed from an order of the Probate Court for the District of Branford denying admission of a purported will dated June 30, 1976. The Probate Court found that the testator lacked testamentary capacity and was subject to undue influence. The Superior Court dismissed Stanton's appeal, and Stanton subsequently appealed to the Connecticut Supreme Court.

FACTS:

Julius J. Zdanowicz died on August 21, 1976, leaving a wife, five children, and twelve grandchildren. A will dated June 30, 1976 was executed and attested by two witnesses. The will was drafted by an attorney at the request of the plaintiff, Henry Stanton, using a prior will dated May 19, 1975 that Stanton provided with handwritten notations indicating desired changes. Stanton was present during execution and discussed the will's contents with the attorney. The 1976 will significantly increased the bequests to Stanton, his wife, and three of his daughters, while reducing the shares of the testator's wife, two daughters, and several grandchildren. Around this time, the testator moved into Stanton's home after a brief and unsuccessful stay in a nursing home. Shortly thereafter, a bank account containing approximately \$10,000 was transferred into a joint survivorship account with Stanton. Less than one month after execution of the will, Stanton arranged for the testator to be medically examined for purposes of appointing a conservator, and Stanton was later appointed to that role. Medical testimony and family observations established that the testator suffered from deterioration caused by arteriosclerotic cerebral vascular disease, loss of memory, and episodes of failing to recognize close relatives.

ISSUE:

Whether the trial court erred in concluding that the testator lacked testamentary capacity at the time he executed the June 30, 1976 will and that the will was the product of undue influence.

HOLDING:

The Connecticut Supreme Court held that the trial court did not err in finding that the proponent of the will failed to establish testamentary capacity and that the evidence supported a finding of undue influence. The judgment dismissing the appeal was affirmed.

RULE:

In disputes over testamentary capacity, the burden of proof rests on the party claiming under the will. Although there is a presumption of sanity, the proponent must establish that the testator had mind and memory sound enough to understand the business in which he was engaged at the time of execution. When undue influence is alleged, the burden of proof is on the contesting party, and undue influence may be proven through circumstantial evidence demonstrating that, but for the actions of the proponent, the testator would have made a different disposition.

REASONING:

The Court concluded that the trial court correctly placed the burden of proving testamentary capacity on Stanton and properly applied the established test for capacity. Based on medical testimony describing the testator's cognitive deterioration, loss of memory, and failure to recognize close relatives, the trial court reasonably found that the testator lacked the mental capacity to make a valid will. Because the ultimate determination of testamentary capacity is a question of fact for the trier, the Supreme Court declined to disturb that finding. With respect to undue influence, the Court held that the trial court properly required the contesting party to carry the burden of proof. It determined that ample circumstantial evidence supported the finding of undue influence, including the substantial increase in benefits to Stanton and his immediate family, the corresponding reduction in bequests to other relatives, and Stanton's active role in arranging for the preparation and execution of the will. Taken together, these circumstances supported the conclusion that the testator's estate was disposed of in a manner contrary to a freely exercised will.